

Supreme Court of the State of New York
Appellate Division, First Judicial Department

PRESENT Hon. Peter H. Moulton,
Saliann Scarpulla
David Friedman
Barbara R. Kapnick
Martin Shulman,

Justice Presiding,

Justices.

730 Lexington LLC,
Plaintiff-Respondent,

-against-

Motion No.	2025-02458
Index No.	650505/22
Case No.	2024-06188

Ben Ashkenazy and Daniel Levy,
Defendants-Appellants.

An appeal having been taken to this Court from an order of the Supreme Court, New York County entered on or about September 30, 2024 (Case No. 2024-06188),

Now, upon reading and filing the papers with respect to the motion including the correspondence from counsel for defendant-appellant dated June 25, 2025, and due deliberation having been had thereon,

It is ordered that the motion is deemed withdrawn in accordance with the aforesaid correspondence.

ENTERED: March 10, 2026



Susanna Molina Rojas
Clerk of the Court